

PLJ 2021 Lahore 681
[Multan Bench, Multan]

Present: JAWAD HASSAN, J.

MUHAMMAD ISHTIAQ--Petitioner

versus

FEDERATION OF PAKISTAN MINISTRY ENERGY AND POWER ISLAMABAD and 3
others--Respondents

W.P. No. 3571 of 2021, decided on 8.3.2021.

Constitution of Pakistan, 1973--

----Arts. 9, 37, 38 & 199--Fundamental Rights--Right to basic needs--Right to life--Supply of Electricity--Electricity connection demand notice--Issuance of--Grievance of petitioner is that respondents are not issuing demand notice for electricity distribution system--Electricity is one of basic amenities and life seems to be impossible without this facility--Constitution guarantees fundamental rights to every citizen and this Court, while exercising its constitutional jurisdiction, may direct relevant authority to enforce such fundamental rights. Court is meant to protect and enforcement of fundamental rights of citizens which are being infringed by anyone--To enjoy facility of electricity is under constitution and particularly, in present era when life seems to be impossible without electricity--Provision of electricity comes under guarantee of right to life enshrined in Art.9 of constitution, 1973--Denial of electricity connection to appellant was violation of fundamental right. Right to received electricity as fundamental right of citizens--Right to life was not restricted only to prosecution of a person but state was required to insure that all aspects of citizens, life were protected and dealt with by state--A copy of this petition along with all annexure be forwarded to respondent who will treat it as a representation of petitioner and decide issue in hand after providing proper hearing to all concerned including petitioner, strictly in accordance with law--Case was remanded.

[Pp. 682, 683 & 684] A, B, C, D, E, F & G

2018 YLR 1391; 2014 SCMR 220; PLJ 2012 Lah 751 (DB); PLD 2014 Pesh 199; PLD 2013 Lah 182; 2020 SCMR 622 *ref.*

Kh. Qaisar Butt, ASC for Petitioner.

Syed Shahanshah Hussain Bukhari, Assistant Attorney General (on Court call).

Date of hearing: 8.3.2021.

JUDGMENT

The only grievance of the Petitioner is that the Respondents are not issuing demand notice for electricity distribution system to his housing scheme known as “Sardar City Piran Ghaib Road, Multan” despite the fact that he is ready to deposit all the requisite dues/charges, including payment of the estimated cost for supply of electricity, hence, he has sought indulgence of the, Court by filing this petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “Constitution”).

2. *Kh. Qaisar Butt*, ASC submits that the Petitioner has time and again approached the concerned Respondents for the redressal of his grievance but they are not paying any heed to his genuine request. He further submits that non-provision of electricity facility to the housing scheme of the Petitioner will badly infringe fundamental right to life of the inhabitants of the said scheme, as guaranteed under Article 9 of the Constitution. He next contends that the provisions of Article 37 read with Article 38 of the Constitution provide

right to basic-needs/amenities of life to all the citizens of Pakistan. He maintains that electricity is one of the basic amenities and life seems to be impossible without this facility. Adds that the Constitution guarantees fundamental rights to every citizen and this Court, while exercising its constitutional jurisdiction, may direct the relevant authority to enforce such fundamental rights. In this regard, he has placed reliance on the judgment passed by the learned Division Bench of this Court in the case of Chief Executive, GEPCO and 3 others versus Asghar Ali Rana (2018 YLR 1391) wherein it has been held that “the Constitution guarantees fundamental rights to every citizen and this Court is meant to protect and enforcement of the fundamental rights of the citizens which are being infringed by anyone. To enjoy the facility of electricity is under the Constitution and particularly, in the present era when life seems to be impossible without electricity”. Reliance is also placed on the case reported as Engineer Iabal Zafar Jhagra and Senator Rukhsana Zuberi versus Federation of Pakistan and others (2014 SCMR 220) in which the Hon’ble Supreme Court of Pakistan has held that “provision of electricity come under the guarantee of right to life enshrined in Article 9 of the Constitution”.

3. Furtherance to the Petitioner’s case, his learned counsel has next relied on the judgment reported as Haji Muhammad Latif versus Chief Executive GEPCO, Gujranwala and 3 others (PLJ 2012 Lahore 751 (DB) wherein it has held that “electricity was a basic necessity of life and in such age of science and technology no one can lead a conducive life and play effective role in the society without electricity. Denial of electricity connection to appellant was violation of fundamental right and GEPCO had failed to furnish any reasonable explanation for not providing electricity connection to appellant”. In support of his arguments, learned counsel also relied on the cases of Haji Lal Muhammad versus Federation of Pakistan through Secretary, Ministry of Interior Division, Islamabad through Deputy Attorney General at Peshawar and 4 others (PLD 2014 Peshawar 199) and Pakistan Flour Mills Association (Punjab Branch) through Vice-Chairman versus Water and Power Development Authority (WAPDA) and others (PLD 2013 Lahore 182) wherein right to receive electricity as fundamental right of citizens has been elaborated in detail. The attention of the Court has also been drawn towards the recently reported judgment of the Hon’ble Supreme Court of Pakistan in the case of Naimatullah Khan Advocate and others versus Federation of Pakistan and others (2020 SCMR 622) wherein it has been held that “right, to life was not restricted only to the prosecution of a person but the State was required to ensure that all aspects of citizens’ life were protected and dealt with by the State”. In the said case, it has been further elaborated by the Apex Court of the Country that “right to life included the provision of drinking water; provision of electricity; provision of education; provision of health facility; provision of civic and civil infrastructure, and provision of transportation for citizens etc.” He pleads that the Constitution guarantees fundamental rights to every citizen and this Court, while exercising its constitutional jurisdiction, may direct the relevant authority to enforce such fundamental rights.
4. At this juncture, Kh. Qaisar Butt, ASC of submits that he would be satisfied if the matter be remitted to the Respondent No. 2 with a direction to decide the same expeditiously in accordance with law. This request is tenable, hence, allowed.
5. In view of the above, copy of this writ petition alongwith all the annexures be forwarded to the Respondent No. 2 who will treat it as a representation of the Petitioner and decide the issue in hand after providing proper hearing to all concerned including the Petitioner, strictly in accordance with law and specifically in light of the judgments mentioned above, through a speaking order, within four weeks from the receipt of certified copy of this order.

(M.A.B.) Petition Disposed of